

EC063728 EC063728

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Case Number: EC063728 Hearing Date: August 12, 2026 Dept: X

#25 - SURJIT P. SONI VS CARTOGRAPH, INC.

This action arose from an attorney-client fee dispute that was arbitrated under the Mandatory Fee Arbitration Act through the Los Angeles County Bar Association.

On August 16, 2021, the Court entered a final judgment awarding Defendants \$334,458.41 in fees and costs against Judgment Debtor. Defendants move to amend the August 16, 2021 judgment to add "The Soni Family Trust" as an additional judgment debtor. The motion is supported through the Declaration of Jessica M. Weisel and exhibits that include the judgment, a recorded grant deed, selected pages of the Carmen Ascanio transcript, Morgan Stanley statement pages, a Bates-stamped trust copy, account applications, and a declaration by Weisel stating "I am informed and believe" as to the Morgan Stanley account being closed after a December 2025 transfer.

Soni opposes the motion, files separate evidentiary objections, and submits a certified copy of the full April 8, 2026 examination transcript of Carmen Ascanio. The opposition states that the judgment runs against Surjit P. Soni dba The Soni Law Firm, and that no trust or trustee was named in the operative pleadings or included in the judgment.

Evidentiary Rulings

1) Objection No. 1 challenges Weisel Declaration paragraph 1's blanket assertion of personal knowledge and asks that the paragraph be limited to counsel's identity and participation.

Ruling: Sustained in part. Paragraph 1 may establish counsel's identity and participation, but it does not by itself supply foundation for paragraphs 4 through 10 or Exhibits C through G.

2) Objection No. 2 addresses Weisel Declaration paragraph 2 and Exhibit A, the August 16, 2021 judgment, and requests that any consideration be limited to proper judicial notice of the court record and its contents.

Ruling: Sustained in part. The Court considers Exhibit A only as a court record and for its existence, date, and contents, not for disputed inferences beyond the record.

3) Objection No. 3 addresses Weisel Declaration paragraph 3 and Exhibit B, the recorded grant deed, and challenges the phrase that it was signed "just 12 days" after the appellate decision.

Ruling: Sustained in part. Exhibit B may be considered for its face, execution and recording dates, and record-title effect, but not as proof of intent, concealment, or identity.

4) Objection No. 4 addresses Weisel Declaration paragraph 4 and challenges any use of the Ascanio PMK designation or production event as blanket authentication for the Morgan Stanley records.

Soni's declaration states that Ascanio testified she did not assist in producing the subpoenaed documents, did not know whether she had seen them before the examination, and did not know who searched for responsive documents.

Ruling: Sustained in part. Paragraph 4 is limited to the fact that the examination occurred and documents were produced; it does not furnish general authentication or business-record foundation.

5) Objection No. 5 addresses Weisel Declaration paragraph 5 and Exhibit C, the October 14, 2024 letter, and challenges signature attribution and any assertion that the letter accomplished a transfer.

Ruling: Sustained in part. Exhibit C may be treated only as a document produced by Morgan Stanley; it is not competent on this record to prove that it was signed by the Sonis or that it effected a transfer.

6) Objection No. 6 addresses Weisel Declaration paragraph 6 and Exhibit D, the selected Ascanio transcript pages, and invokes completeness under Evidence Code section 356 and limits based on personal knowledge and foundation.

The full transcript submitted by Soni includes testimony that Ascanio had not reviewed key trust materials, did not know who selected the production, and could not authenticate the trust agreement or account-opening records.

Ruling: Sustained in part. Exhibit D will be considered for testimony within Ascanio's personal knowledge, and the Court considers the connected portions of the complete transcript necessary for context.

7) Objection No. 7 addresses Weisel Declaration paragraph 7 and Exhibit E, monthly statement pages allegedly reflecting a \$100,000 transfer in October 2025, and challenges authentication, hearsay, and business-record foundation. The objections state that Ascanio read the transaction entry but did not know whether the transfer occurred at the account holder's request.

Ruling: Sustained in part. Exhibit E is not competent on this record to prove who directed the transfer, why it occurred, or what legal significance it carried.

8) Objection No. 8 challenges Weisel Declaration paragraph 8, which states on information and belief that one account closed and another remained frozen. The objections state that Ascanio testified she did not know whether the transferred account was closed.

Ruling: Sustained.

9) Objection No. 9 addresses Weisel Declaration paragraph 9 and Exhibit F, described as a true and correct copy of the Soni Family Trust, and challenges any claim that the exhibit is the complete, current, operative trust instrument. The objections state that Ascanio testified she could not authenticate a trust agreement and had not reviewed the relevant trust pages before the examination.

Ruling: Sustained in part. Exhibit F may be considered as a copy produced by Morgan Stanley, not as competent proof that it is the complete, current, operative trust instrument or that no amendment, limitation, or later exercise exists.

10) Objection No. 10 addresses Weisel Declaration paragraph 10 and Exhibit G, two account applications with checked revocable boxes and electronic signatures, and challenges authentication, signature attribution, and business-record foundation. The objections state that Ascanio did not prepare the applications, did not know who prepared them, and did not know the signatures personally.

Ruling: Sustained in part. Exhibit G is not competent on this record to prove that either settlor executed the forms, that any electronic signature is attributable to either settlor, or that the forms establish the legal scope of any revocation power.

11) Objection No. 11 addresses Weisel Declaration paragraph 11 and the redactions to Exhibits C, F, and G, and seeks to prevent any inference that the redacted copies are complete.

Ruling: Sustained in part. Sealing or confidentiality treatment is permitted, but the Court draws no completeness inference from the redacted copies.

Tentative Ruling

Defendants' motion to amend judgment is DENIED.

Legal Authority and Analysis

"Section 187 grants every court the power and authority to carry its jurisdiction into effect. [Citation.] This includes the authority to amend a judgment to add an alter ego of an original judgment debtor, and thereby make the additional judgment debtor liable on the judgment. [Citation.]" (Highland Springs Conference & Training Center v. City of Banning (2016) 244 Cal.App.4th 267, 280, internal citations omitted.)

"Amending a judgment to add an alter ego of an original judgment debtor 'is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant.' [Citation.]" (Id., internal citations omitted.)

"Section 187 contemplates amending a judgment by noticed motion. [Citations.] The court is not required to hold an evidentiary hearing on a motion to amend a judgment, but may rule on the motion based solely on declarations and other written evidence. [Citation.]" (Id., internal citations omitted.)

"A court may amend its judgment at any time so that the judgment will properly designate the real defendants. . . . Amendment of a judgment to add an alter ego is equitable procedure based on the theory that at the court is not amending the judgment to add new defendant but is merely inserting the correct name of the real defendants." (Greenspan v. LADT, LLC (2010) 191 Cal.App.4th 486, 508; Hall, Goodhue, Haisley Barker, Inc. v. Marconi Conference Center Board (1996) 41 Cal.App.4th 1551, 1554-1555.) Amending a judgment to add a party as an alter ego "requires both (1) that the new party be the alter ego of the old party and (2) that the new party ... controlled the litigation, thereby having had the opportunity to litigate, in order to satisfy due process concerns. The due process considerations are in addition to, not in lieu of, the threshold alter ego issues." (Wolf Metals Inc. v. Rand Pacific Sales Inc. (2016) 4 Cal.App.5th 698, 703.)

Limited by the foregoing evidentiary rulings, the record establishes, at most, that:

1. a judgment exists against Surjit P. Soni dba The Soni Law Firm;

2. a grant deed transferred title from the Sonis individually to themselves as co-trustees;
3. Morgan Stanley produced certain documents at the Ascanio examination; and
4. certain trust-related and account-related materials were among that production.

The opposition states that the trust was dated February 10, 2020, while the action began in March 2015, and argues that Defendants submitted no evidence that the Trust retained counsel, paid counsel, selected strategy, controlled settlement, supplied witnesses, or directed the appeal. (Opp., p. 3.) Plaintiff further states that Ascanio did not search for the documents, did not know who did, had never seen the October 14, 2024 letter before the examination, and could not authenticate a trust agreement or personally identify the signatures on the account applications. (Opp., p. 3; Ascanio Transcript, 11:10-17, 44:19-45:16, 15:4-9, 16:4-9.)

Plaintiff also argues that the requested amendment would affect trust-titled assets and potentially the interests of Milena Soni as co-settlor, co-trustee, beneficiary, spouse, and potential owner of community or separate property—although she is not a judgment debtor and was not joined or served in that capacity. (Opp., p. 14.)

Defendants' showing is insufficient. The present record does not establish that "The Soni Family Trust" was the real defendant in the underlying action, that the trust controlled the litigation in the due process sense required for amendment under section 187, or that the proffered trust and brokerage materials establish the complete operative trust instrument and the extent of any revocation power. Instead, the motion attempts to merge distinct questions of identity, property reach, and post-judgment enforcement into a single amendment order. Even if some trust property might be reachable in a properly framed enforcement proceeding, the present motion does not justify adding "The Soni Family Trust" itself as a new judgment debtor.

Defendants' Motion to Amend the Judgment is DENIED without prejudice to any otherwise available, properly noticed post-judgment enforcement proceeding directed to specific property or parties.

Moving Party is to give notice.